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Advice Council of State

Advisory Council of State on the draft general administrative measure containing: amendment of List I, belonging to the Opium Act, in connection with the placement of some substances on this list

Further report*31 August 2023**3613503-1049299-WJZ**Directorate of Legislation and Legal Affairs*

To the King

Further report on the draft general administrative measure containing: amendment of List I, belonging to the Opium Act, in connection with the placement of some substances on this list

According to the communication of the Director of Your Cabinet of 13 June 2023, no.2023001390, your majesty authorised the Advisory Division of the Council of State to give its opinion on the above-mentioned draft general

administrative measure directly to to send to me. This opinion, dated July 12, 2023, No. W13.23.00129/III, offers I hereby to thank you.

By Cabinet Missive of 13 June 2023, no.2023001390, Your Majesty, on nomination of the Minister of Health, Welfare and Sport, at the Advisory Division of the Council of State for consideration the draft decision to amend of list I, belonging to the Opium Act, in connection with the placement of certain substances on this list, with explanatory note.

The Advisory Division of the Council of State has no comments on the draft decision and advises to make the decision.

The Vice-President of the Council of State,

Th.C. de Graaf

I should like to forward to you the draft decision and the explanatory memorandum and Request you to decide in accordance with this draft.

*The Minister of Health, Welfare and Sport,
E.J. Coopers.*

Advisory Council of State

*No. W13.23.00129/III
The Hague, 12 July 2023*

By Cabinet Missive of 13 June 2023, no.2023001390, Your Majesty, on nomination of the Minister of Health, Welfare and Sport, at the Advisory Division of the Council of State for consideration the draft decision to amend of list I, belonging to the Opium Act, in connection with the placement of certain substances on this list, with explanatory note.

The Advisory Division of the Council of State has no comments on the draft decision and advises to make the decision.

*The vice-president of the Council of State,
Th.C. de Graaf.*

Text as sent to the Council of State: Decree amending the list I, belonging to the Opium Act, in connection with the placement of certain substances on this list

We Willem-Alexander, by the grace of God, King of the Netherlands, Prince of Orange-Nassau, etc. etc. etc.

On the presentation of of Public Health, Welfare and Sport of 9 June 2023, characteristic 3604761-1049299-WJZ;

Having regard to Commission Delegated Directive (EU) 2022/1326 of 18 March 2022 amending the Annex to Council Framework Decision 2004/757/JHA as regards with the inclusion of new psychoactive substances in the definition of 'drug' (OJEU 2022, L 200) and article 3a, first paragraph, of the Opium Act;

Heard the Advisory Division of the Council of State (opinion of, no.);

Having regard to the further report of Our Minister of Health, Welfare and Sport ofattribute.....;

Have agreed and understood:

ARTICLE I

List I of the Opium Act is amended as follows:

1. The following is inserted after the text relating to the plea 25I-NBOMe:

a. in the column 'International Non-proprietary Name (INN)':

—;

(b) in the column 'other names':

3-CMC (3-chloromethcathinone, clofedron);

c. in the column 'further description':

1-(3-chlorophenyl)-2-(methylamino)propane-1-one;

2. The following is inserted after the text relating to the product broamphetamine:

a. in the column 'International Non-proprietary Name (INN)':

(b) in the column 'other names':

brorfine;

c. in the column 'further description':

1-{1-[1-(4-bromophenyl)ethyl]piperidine-4-yl}-1,3-dihydro-2 H-benzimidazole-2-one;

3. The following is inserted after the entry relating to N-ethyl-3,4-methylenedioxy-amphetamine, N-ethyl-MDA:

a. in the column 'International Non-proprietary Name (INN)':

—;

(b) in the column 'other names':

N-ethylbutylone (eutylon);

c. in the column 'further description':

1-(2 H-1,3-benzodioxol-5-yl)-2-(ethylamino)butane-1-one;

4. The following is inserted after the entry relating to methylon:

a. in the column 'International Non-proprietary Name (INN)':

—;

(b) in the column 'other names':

metonitazene;

c. in the column 'further description':

N,N-diethyl-2-[(4-methoxyphenyl)methyl]-5-nitro-1*H*-benzimidazol-1-ethaneamine)

ARTICLE II

This Decision shall enter into force on the day following the date of issue of the Official Gazette in which it is placed.

Charges and orders that this decision with the accompanying explanatory note in the Official Gazette will be published.

The Minister of Health, Welfare and Sport,

EXPLANATORY NOTE

General part

Due to serious health risks and serious social risks, a number of new psychoactive substances subject to control measures. This is in international connection decided. Through this decision, these new psychoactive substances are listed I belonging to the Opium Act. Pursuant to Article 2 of the Opium Act, the prohibited from bringing these substances into or outside the territory of the Netherlands, grow, prepare, process, sell, deliver, provide, to transport, to have present or to manufacture. Specifically, it is about the placement 3-CMC, bromphine, eutylon and metonitazene in List I the Opium Act.

The Single Convention and the Psychotropic Substances Convention

This decision implements three decisions of 16 March 2022 of the United Nations Commission on Narcotic Drugs ('the CND'). ¹ First, pursuant to Article 3 of the New York Convention of 30 March 1961, Single Convention on Narcotic Drugs (Tr. 1962, 30) the CND decided to subject bromphine and metonitazene to control measures. In addition, on the basis of Article 2, fifth paragraph, of the Convention on Psychotropic Substances concluded in Vienna in 21 (Trb. 1971, 1989) decided to subject eutylon to control measure. The CND is up to this decision following a risk analysis by the WHO which concluded that the pose an unacceptable risk.

Pursuant to Articles 4 and 2, seventh paragraph of the respective Treaties, states then obliged to subject these substances to control measures. In the Netherlands, these measures are laid down in the Opium Act. Having regard to the serious These three new psychoactive substances are classified as hard drugs. The three new psychoactive substances have a similar effect to substances that are already on list I belonging to the Opium Act. The new substances therefore come also on list I.

Framework Decision 2004/757/JHA

Furthermore, pursuant to article 3a, first paragraph, of the Opium Act, by general measure of management resources added to list I or list II in order to implement an obligation pursuant to Framework Decision 2004/757/JHA. ² This Decision places the substance 3-CMC in List I. This will implemented Delegated Directive (EU) 2022/1326. ³ The Delegated Directive (EU) 2022/1326 brings the substances 3-CMC and 3-MMC under the definition of 'drug' in Framework Decision 2004/757/JHA. Several Member States have 3-CMC and 3-MMC already brought under their drug laws and measures linked to these substances. Harmonisation within the EU is needed to remove obstacles in the cross-border law enforcement and judicial cooperation. The delegate Directive (EU) 2022/1326 and Framework Decision 2004/757/JHA together require Member States to take the necessary measures to produce, manufacture, extract, prepare, offer, put up for sale, distribute, sell, deliver, regardless the conditions, trading, transit, transport, import or export of 3-CMC and 3-MMC in accordance with their national legislation by 18 February 2023. This Decision fulfils that obligation with regard to 3-CMC. That obligation has already been fulfilled in respect of 3-MMC, as this substance in 2021 has been placed on list II belonging to the Opium Act. ⁴

Curtain

In accordance with article 3a, fourth paragraph, of the Opium Act, a draft of this general measure of administration on 9 May 2023 to both chambers of the States-General sent (Parliamentary Papers II 2022/23, 36355, no. 1). This did not lead to any substantive comments.

Regulatory pressure

The Advisory Board on Regulatory Pressure Review (ATR) has not selected the dossier for a formal opinion, because – except for one-off knowledge costs – it has no consequences for the regulatory burden.

Article-by-article section

Article I

This article lists 3-CMC, brorphine, eutylon and metonitazene I belonging to the Opium Act.

Artikel II

Dit artikel regelt de inwerkingtredingsdatum van dit besluit. Vanwege de onaanvaardbare risico's die kleven aan deze nieuwe psychoactieve stoffen wordt afgeweken van de zogenaamde vaste verandermomenten. Daarnaast betreft het implementatie van EU recht en besluiten van een volkenrechtelijke organisatie. Op grond van artikel 3, zevende lid, van het Enkelvoudig Verdrag inzake verdovende middelen moeten besluiten zo spoedig mogelijk in werking treden. Deze algemene maatregel van bestuur treedt daarom in werking op de dag na publicatie in het Staatsblad.

De Minister van Volksgezondheid, Welzijn en Sport,

Transponeringstabel

Provision of Delegated Directive (EU) 2022/1326	Provision in implementation scheme or existing scheme	Omschrijving beleidsruimte	Explanation of the choice(s) in the interpretation of the policy space
Article 1	List I and List II of the Opium Act	Chosen to place 3-CMC on list I. 3-MMC is already on list II.	Based on the most recent risk information about 3-CMC, placement was chosen on List I.
Article 2	By its very nature, does not require implementation	No	—
Article 3	By its very nature, does not require implementation	No	—
Article 4	By its very nature, does not require implementation	No	—

International decision	Part of this Decision
Decision 65/1	Article I(2)
Decision 65/2	Article I(4)
Decision 65/3	Article I(3)

1

These are Decisions 65/1, 65/2 and 65/3 of the CND, which can be consulted via:

https://www.unodc.org/unodc/en/commissions/CND/Resolutions_Decisions/resolutions-and-decisions-2020-2029.html#CND_2022.

2

Council Framework Decision 2004/757/JHA of 25 October 2004 on the adoption minimum rules on the constituent elements of criminal offences, and on penalties in the field of illicit drug trafficking (OjEU 2004, L 335).

3

Commission Delegated Directive (EU) 2022/1326 of 18 March 2022 amending of the Annex to Council Framework Decision 2004/757/JHA on the inclusion of new psychoactive substances in the definition of 'drug' (OjEU 2022, L 200).

4

Decision of 25 October 2021 amending Lists I and II of the Opium Act, in connection with the inclusion on List II of 3-MMC, as well as placement on list I and II of some other resources (Stb. 2021, 504).

The pdf files of the Official Gazette, Government Gazette, Tractatenblad, provincial magazine, municipal gazette, water board magazine and common regulation magazine offered here constitute the formal announcements within the meaning of the Publication Act and the National Act on Approval and Publication of Treaties insofar as they were issued after 1 July 2009. For PDF publications published before this date, only the sheets published in paper form have formal status; The electronic versions offered here are offered as a service.